

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

CASE OF ZHUKOVETS AND OTHERS v. RUSSIA

(Applications nos. 21782/21 and 18 others –
see appended list)

JUDGMENT

STRASBOURG

28 March 2024

This judgment is final but it may be subject to editorial revision.



In the case of Zhukovets and Others v. Russia,

The European Court of Human Rights (Fourth Section), sitting as a Committee composed of:

Branko Lubarda*, President*,
Armen Harutyunyan,
Ana Maria Guerra Martins*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 7 March 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a

prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); *Novikova and Others v. Russia*, nos. 25501/07 and 4 others, 26 April 2016, concerning disproportionate measures against solo demonstrators; and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraphs 11 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 28 March 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Branko Lubarda
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	21782/21 02/04/2021	**Anton Alekseyevich ZHUKOVETS** 1996	Ivanets Vyacheslav Sergeyevich Tbilisi, Georgia	Rally "Free Navalnyy" Irkutsk 23/01/2021	article 20.2 § 2 of CAO	detention for 10 days	Irkutsk Regional Court 28/01/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
2.	31152/21 23/05/2021	**Arkadiy Vasilyevich TRIFONOV** 1966	Bochilo Anna Yevgenyevna Barnaul	Rally "Free Navalnyy" Barnaul 23/01/2021 Rally "Free Navalnyy" Barnaul 21/04/2021	article 20.2 § 6.1 of CAO article 20.2 § 6.1 of CAO	fine of RUB 10,000 40 hours of community work	Altai Regional Court 17/03/2021 Altay Regional Court 10/06/2021	Art. 5 (1) - unlawful deprivation of liberty - escorting to and detention at the police station for compiling an offence record between 3:00 p.m. on 23/01/2021 and the afternoon of 24/01/2021; escorting to the police station for compiling an offence record on 21/04/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - in both sets of administrative proceedings (concerning the events of 23/01/2021 and 21/04/2021)	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
3.	34911/21 20/06/2021	**Maksimilian Vitalyevich FEDYUNIN** 1979	Bochilo Anna Yevgenyevna Barnaul	Rally "Free Navalnyy" Lipetsk 23/01/2021 Rally "Free Navalnyy" Lipetsk 21/04/2021	article 20.2 § 5 of CAO article 20.2 § 5 of CAO	fine of RUB 10,000 fine of RUB 75,000	Lipetsk Regional Court 11/03/2021 Lipetsk Regional Court 27/05/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record on 23/01/2021; escorting to and detention at the police station for compiling an offence record between 8:05 p.m. on 21/04/2021 and 1:45 p.m. on 22/04/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - in both sets of administrative proceedings (concerning the events of 23/01/2021 and 21/04/2021)	5,000
4.	43664/21 12/08/2021	**Valeriya Dmitriyevna DELINA** 2000	Glukhov Aleksey Vladimirovich Novocheboksarsk	Rally "Free Navalnyy" Cheboksary 23/01/2021 Rally "Free Navalnyy" Cheboksary 21/04/2021	article 20.2 § 5 of CAO article 20.2 § 8 of CAO	fine of RUB 10,000 40 hours of community work	Supreme Court of the Republic of Chuvashia 25/03/2021 Supreme Court of the Republic of Chuvashia 24/06/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence record on 04/06/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - in both sets of administrative proceedings	5,000
5.	48085/21 07/09/2021	**Irina Kimovna OGANESYAN** 1959	Aksenova Darya Dmitriyevna Kolomna	Rally "Free Navalnyy" Moscow 23/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 10/03/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence record on 23/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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6.	49873/21 22/09/2021	**Anton Sergeyevich FILIPPOV** 1988	Bochilo Anna Yevgenyevna Barnaul	Rally "Free Navalnyy" Moscow 31/01/2021 Anti-war rally Moscow 24/02/2022	article 20.2 § 6.1 of CAO article 20.2 § 8 of CAO	fine of RUB 10,000 detention for 30 days	Moscow City Court 26/03/2021 Moscow City Court 14/03/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 3:30 p.m. on 31/01/2021 and 4:00 p.m. on 01/02/2021; escorting to and detention at the police station for compiling an offence record between 8:30 p.m. on 24/02/2022 and 7:10 a.m. on 25/02/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - in both sets of administrative proceedings (concerning the events of 31/01/2021 and 24/02/2022) Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO / Tushinskiy District Court of Moscow 25/02/2022	5,000
7.	50845/21 24/09/2021	**Andrey Anatolyevich ISAKOV** 1959	Kosnyrev Vladislav Vladimirovich Syktyvkar	Rally "Free Navalnyy" Syktyvkar 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Komi Republic 24/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 1:30 p.m. and 9:30 p.m. on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
8.	51556/21 29/09/2021	**Olga Alekseyevna ZENINA** 1952	Gak Irina Vladimirovna Rostov-on-Don	Rally "Free Navalnyy" Rostov-on-Don 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Rostov Regional Court 30/03/2021	Art. 5 (1) - unlawful deprivation of liberty - escorting to and detention at the police station for compiling an offence record between 1:00 p.m. and 6:00 p.m. on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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9.	54357/21 20/10/2021	**Yevgeniy Vladimirovich NEVECHERYA** 1978	Dimitriyev Dmitriy Sergeyevich Orenburg	Rally "Free Navalnyy" Orenburg 31/01/2021	article 20.2 § 5 of CAO	fine for RUB 10,000	Orenburg Regional Court 20/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 1:45 p.m. and 5:30 p.m. on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
10.	27/22 26/11/2021	**Konstantin Viktorovich KISELEV** 1963	Bushmakov Aleksey Vladimirovich Yekaterinburg	Rally "Free Navalnyy" Yekaterinburg 23/01/2021 Rally "Free Navalnyy" Yekaterinburg 31/01/2021	article 20.2 § 5 of CAO article 20.2 § 5 of CAO	fine of RUB 15,000 fine of RUB 15,000	Sverdlovsk Regional Court 24/06/2021 Sverdlovsk Regional Court 16/06/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - in both sets of administrative proceedings (concerning the events of 23/01/2021 and 31/01/2021)	3,500
11.	6368/22 15/01/2022	**Darya Aleksandrovna BELYAYEVA** 1991	Kachanov Roman Yevgenyevich Yekaterinburg	Rally against police abuse Yekaterinburg 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 18/08/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
12.	14423/22 16/02/2022	**Konstantin Leonidovich MIKHAYLOV** 1996	Kochenkov Viktor Valeryevich Izhevsk	Rally "Free Navalnyy" Izhevsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Republic of Udmurtia 16/08/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 08:00 p.m. and 11:40 p.m. on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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13.	16210/22 18/01/2022	**Aleksey Sergeyevich STERKHOV** 1980	Kochenkov Viktor Valeryevich Izhevsk	Rally "Free Navalnyy" Izhevsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Republic of Udmurtia 19/07/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 12:30 p.m. and 5:10 p.m. on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
14.	25328/22 (8 applicants)	**Vladislav Vitalyevich ARINICHEV** 1993 **Aleksandr Denisovich BEZRUCHKIN** 2000 **Timofey Aleksandrovich DANILOV** 1998 **Pavel Alekseyevich GLAZKOV** 1975 **Stanislav Yuryevich KARMAKSKIKH** 1986	Baranova Natalya Andreyevna Moscow	Mr Arinichev: anti-war protest Moscow 08/03/2022 Mr Bezruchkin: anti-war protest Moscow 11/03/2021 Mr Danilov: anti-war protest Yaroslavl 06/03/2022 Mr Glazkov: anti-war protest Moscow 13/03/2022	article 20.3.3 § 1 of CAO article 20.3.3 § 1 of CAO article 20.3.3 § 1 of CAO article 20.3.3 § 1 of CAO	fine of RUB 50,000 fine of RUB 50,000 fine of RUB 30,000 fine of RUB 50,000	Moscow City Court 11/05/2022 Moscow City Court 17/05/2022 Yaroslavl Regional Court 19/05/2022 Moscow City Court 26/04/2022		4,000, to each of the applicants

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		Petr Andreyevich SAMSONOV 1990 **Aleksandr Nikolayevich SHRAMKOV** 1965 **Denis Sergeyevich SKUDAYEV** 1981		Mr Karmakskikh: anti-war protest Tomsk 06/03/2022 Mr Samsonov: anti-war protest Tomsk 06/03/2022 Mr Shramkov: anti-war protest Volokonovka 14/03/2022 Mr Skudayev: anti-war protest Perm 06/03/2022	article 20.3.3 § 1 of CAO article 20.3.3 § 1 of CAO article 20.3.3 § 1 of CAO article 20.3.3 § 1 of CAO	fine of RUB 45,000 fine of RUB 30,000 fine of RUB 40,000 fine of RUB 30,000	Tomsk Regional Court 08/04/2022 Tomsk Regional Court 08/04/2022 Belgorod Regional Court 23/05/2022 Perm Regional Court 26/05/2022		

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15.	28106/22 17/05/2022	**Marina Pal SINGKH** 1997	Fazulyanov Oleg Borisovich St Petersburg	Photo session to protest violence against women St Petersburg 25/11/2021 Anti-war rally St Petersburg 24/02/2022	article 20.2 § 2 of CAO article 20.2.2 § 1 of CAO	fine of RUB 20,000 detention for 15 days	St Petersburg City Court 18/01/2022 St Petersburg City Court 05/04/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 8:50 p.m. on 25/11/2021 and 5:00 p.m. on 27/11/2021; between 9:50 p.m. on 24/02/2022 and 5:15 a.m. on 25/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - in both sets of administrative proceedings (concerning the events of 25/11/2021 and 24/02/2022)	5,000
16.	38898/22 22/07/2022	**Konstantin Vitalyevich MIKHAYLOV** 1987	Kosheleva Inna Viktorovna Kirov	Opposition rally Kirov 03/02/2022	article 20.2 § 2 of CAO	fine of RUB 20,000	Kirov Regional Court 06/04/2022	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
17.	38906/22 29/07/2022	**Artem Aleksandrovich SHCHELOKOV** 1988	Bannikov Ruslan Yuryevich Voronezh	Anti-war protest Voronezh 24/02/2022	article 20.2 § 8 of CAO	detention for 1 day	Voronezh Regional Court 07/04/2022	Art. 10 (1) - disproportionate measures against solo demonstrators – on 06/03/2022 in Voronezh / solo protest against war in Ukraine / article 20.3.3 § 1 of CAO / fine of RUB 30,000 / 06/07/2022 by the Voronezh Regional Court, Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 8:00 p.m. on 24/02/2022 and his transfer to court next day, on 25/02/2022; escorting to the police station for compiling an offence record on 06/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – both sets of the proceedings	5,000

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18.	40591/22 10/08/2022	**Vladislav Valeryevich BATALOV** 1998	Dadayeva Yekaterina Viktorovna St Petersburg	Anti-war protest St Petersburg 02/04/2022	article 20.2 § 6.1 of CAO	detention for 10 days	St Petersburg City Court 11/04/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 2:30 p.m. and 11:02 p.m. on 02/04/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
19.	40595/22 10/08/2022	**Aleksandr Sergeyevich OREKHOV** 1997	Dadayeva Yekaterina Viktorovna St Petersburg	Anti-war rally St Petersburg 02/04/2022	article 20.2 § 6.1 of CAO	detention for 10 days	St Petersburg City Court 11/04/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 2:40 p.m. and 11:43 p.m. on 02/04/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000

[1] Plus any tax that may be chargeable to the applicants.